

Deed of Variation - Exit Program Assistance Offer

Date

Parties

1. (Franchisee)
2. (Manager)
3. **Mail Plus Pty Ltd** ACN 609 801 195 of Suite 51, Level 45, 680 George Street, Sydney NSW 2000 (MailPlus)

Options - select from the following

OPTION 1 - The Franchisee sells his/her own Franchise territory i.e does not engage MailPlus to facilitate/assist in that process. Under option 1 MailPlus will provide to the Franchisee (via its Manager) a copy of the MailPlus brochure, a blank expression of interest form and a pro-forma territory IM. The Franchisee will be responsible for all marketing endeavors including supporting collateral, candidate screening, interviews & Franchise sales negotiations. Once MailPlus has both vetted & approved a purchaser an instruction to MailPlus's lawyers will be sent to prepare and dispatch disclosure documentation and Franchise Agreements for execution.

OPTION 2 - The Franchisee engages MailPlus to provide administrative support and assistance with the Franchisees sale of its Franchise Business, in this instance MailPlus will assist the franchisee by providing all marketing endeavors, supporting collateral, candidate screening/interviews by MailPlus on the Franchisee's behalf. In the event that the Franchisee successfully sells its Franchise Business, MailPlus will charge a 10% administrative fee associated for the additional assistance it has provided to the Franchisee with that process. The administrative fee will be calculated based on the Franchise purchase price (business component only) i.e excluding any assets that may be part of the sale, Vehicles etc.

OPTION 3 - The Franchisee engages MailPlus to provide administrative support and assistance with the Franchisee's sale of its Franchise Business. Under this option, MailPlus will provide the support and assistance set out in option 2 above, plus additional support and assistance. If MailPlus approves the Franchisee's purchaser, Mail Plus can provide additional assistance by introducing the purchaser to MailPlus's NAB accreditation program. Under this option, Mailplus will assist the Franchisee to manage the process of the Franchisee's initial marketing of the Franchisee's Franchise Business to the Franchisee's securing of a buyer. If the Franchisee sells it's Franchise Business and it's purchaser enters into a tripartite agreement (an agreement between the purchase, the NAB and MailPlus), the Franchisee agrees to pay a sum equivalent to two twelfths of the Purchase Price (business component only ie not including the genuine and reasonable cost of any vehicle purchased). If the Franchisee choose this option, the Franchisee acknowledges that it has taken into account this fee when it determined its Purchase Price with its purchaser.

Agreed terms

1. The parties wish to vary the franchise agreement by adding to the special conditions the offer selected above.
2. This offer applies to sales which are finalised by 31st December 2022.

3. The Franchisee agrees to pay to MailPlus the fee set out in the offer selected above before the settlement of the sale or to irrevocably instruct the purchaser to redirect the Purchase Price payable at settlement directly to MailPlus in payment of the relevant fee.
4. The Manager guarantees the payment of the fee set out in the offer selected above.
5. The parties agree that the terms of this Deed vary and amend the terms of the franchise agreement.
6. A breach of this Deed will constitute a breach of the franchise agreement.

Executed as a deed

Executed by Mail Plus Pty Ltd ACN 609 801 195 in accordance with section 127(1) of the *Corporations Act 2001 (Cth)*:



.....
Signature of sole director and sole company
secretary

Chris Burgess

.....
Name (please print)

Signed Sealed and Delivered by
in the presence of:

.....
Signature –

.....
Signature of witness

.....
Name of witness (please print)

.....
Address of witness (please print)